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* Associated Firm
** In cooperation with
Trench, Rossi e Watanabe
Advogados

25 June 2025

Secretariat of the International Court of Arbitration
of the International Chamber of Commerce
attn.: Ms. Dimitra A. Tsakiri
Ms. Mihaela Tarnovschi
33 avenue du Président Wilson
75116 Paris
France

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Partner
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By email
ica3@iccwbo.org

ICC Case No. 29534/ICA3 **Elcomponics Holdings B.V v. Invictus GmbH and Invictus Cable GmbH**

Dear Ms. Tsakiri,
Dear Ms. Tarnovschi,

We refer to the Claimant's Request for Arbitration of 22 May 2025 and the Secretariat's letter dated 3 June 2025 in the above-referenced arbitration.

First, we wish to herewith notify you of the representation of the Respondents, Invictus GmbH and Invictus Cable GmbH. (1.). Additionally, we comment on the qualifications for any prospective sole arbitrator as proposed by the Claimant (2.). Finally, we request an extension of the deadline to submit the Respondents' Answer to the Request for Arbitration ("**Answer**") (3.)

Nothing in this letter shall be construed as the Respondents accepting jurisdiction of an arbitral body constituted under the auspices of the ICC or engaging in any proceedings that would lead to an acceptance of such jurisdiction over any of the Parties. The Respondents reserve all their rights to make objections, including jurisdictional objections, at the appropriate stage(s) of this arbitration.

1. Representation of the Respondents

The Respondents have authorized Baker McKenzie Rechtsanwälte LLP & Co KG to represent them in the above-referenced arbitration. Please find enclosed a duly executed power of attorney.

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2. Qualifications for Prospective Sole Arbitrator

In its Request for Arbitration, the Claimant requests that the ICC court nominate a sole arbitrator with the following qualifications:

"(a) Extensive experience in international commercial arbitration, particularly involving joint venture disputes, shareholder agreements, and complex financial issues; (b) Familiarity with English law (the governing law of the SHA) and understanding of Austrian corporate law principles relevant for the dispute; (c) Financial understanding sufficient to comprehend accounting issues and expert evidence related to EBITDA calculations and financial statement analysis; (d) Fluency in English (the language of the arbitration); (d) [sic!] availability to conduct the arbitration efficiently with attention to the time-sensitive nature of Put Option enforcement."

While the Respondents are of the opinion that the qualifications listed by the Claimant should constitute a proposal or guideline for the ICC Court rather than an absolute requirement, the Respondents have confidence that the ICC Court will nominate a suitable candidate who meets the qualifications listed in points (a), (c), (d) and (e) above.

Regarding point (b) above, "[f]amiliarity with English law (the governing law of the SHA) and understanding of Austrian corporate law principles relevant for the dispute," the Respondents emphasize the importance for the sole arbitrator to have a thorough knowledge and understanding of Austrian corporate and tax law. While acknowledging that the sole arbitrator should also be acquainted with English law, the Respondents

believe that the main issues of the current dispute are to be resolved based on Austrian corporate and tax law:

First, the Share Sale and Transfer Deed ("**SPA**", Exhibit C-3) through which the Claimant acquired its interest in Invictus Cable GmbH, which it now seeks to divest, stipulates the application of Austrian law (Clause 11.2.). The formation of the Shareholders' Agreement ("**SHA**") under which this arbitration is brought, is predicated upon the SPA. The Claimant attempts to assert certain rights under the SHA, which are based on the alleged material breach on warranties contained in the SPA (Schedule 3, Exhibit C-3). The SHA only refers to the warranties contained in the SPA. Any determination regarding the breach of these warranties will therefore have to be assessed under Austrian law, not English law.

Second, Invictus Cable GmbH is a company organized and existing under the laws of Austria. Therefore, mandatory provisions of Austrian corporate law, in particular the Austrian Limited Liability Companies Act (*GmbH-Gesetz*), will play a key role should the case be heard on the merits.

Third, the main warranty breach the Claimant alleges in this arbitration pertains to tax matters: the allegation that the Respondents "*concealed corporate-income-tax debt of EUR 428,182.09*" netted against allegedly omitted shareholder loans of EUR 1,122,595.16. The factual determination requires an assessment under Austrian tax laws and accounting rules.

In sum, Austrian law has greater significance than English law in the given context. The sole arbitrator should therefore primarily be qualified to rule on matters of Austrian law. While familiarity with English law is certainly helpful, interpreting the provisions of the SHA, which is governed by English law, will mainly turn on contract interpretation rather than addressing complex issues of English law.

3. Request for Extension

The Claimant's Request for Arbitration was received by the Respondents on 3 June 2025. Pursuant to Article 5(1) ICC Rules, the Respondents' deadline to submit their Answer is therefore 3 July 2025.

As we have only been instructed recently to represent the Respondents in this arbitration and considering the upcoming summer period, we respectfully request that the Secretariat grant the Respondents an extension of 30 days, *i.e.* until 4 August 2025 (Article 3(4) ICC Rules), to file their Answer. In addition, please consider that the Respondents' lead counsel in this case has two weeks of planned business travel to Japan and the US, several further major deadlines, including in ICC Case No. 28308/GL/DTI, on 24 July 2025, and a week of vacation from 24 July 2025.

Granting this request for extension will not delay the progress of the arbitration and no prejudice will be caused to the Claimant. In particular, it is unlikely that a sole arbitrator will be appointed for this arbitration before the Respondents submit their Answer.

Yours sincerely

A handwritten signature in blue ink, appearing to read 'F. Boras', with a long horizontal flourish extending to the right.

Filip Boras